

Sinithiya vs Umesh Kumar on 5 August, 2024

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ CM(M) 3096/2024 & CM APPL. 44113/2024
SINTHIYA

Through: Mr. Kunal Madan and Mr.
Jain, Advocates.

versus

UMESH KUMAR

CORAM:
HON'BLE MR. JUSTICE MANOJ JAIN
ORDER

% 05.08.2024 CM APPL. 44114/2024 (Exemption) Exemption allowed, subject to all just exceptions. CM(M) 3096/2024

1. After hearing the arguments for some time, learned counsel for the petitioner states that he does not wish to press the present petition. However, he states that one application has already been moved by petitioner under Section 24 of Hindu Marriage Act and another under Section 91 of Cr.P.C and he seeks a direction to the learned Trial Court to, at least, take up both the said applications and to dispose those of, as expeditiously as possible, in accordance with law.

2. It is stated that said applications are listed before the learned Trial Court on 27th September, 2024.

3. Learned counsel for respondent appears on advance notice and has no objection if petitioner moves appropriate application seeking pre-ponement This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 07/08/2024 at 00:30:52 of hearing with respect to the aforesaid applications. He states that he would also render due assistance to the learned Trial Court for the purposes of expeditious disposal of said applications.

4. In view of the above, present petition is disposed of with direction that the petitioner would be at liberty to move appropriate application seeking early hearing of said applications and the learned Trial Court, after pre-poning the date, would hear and dispose those of in accordance with law.

5. Learned counsel for the petitioner states that trial is being done on day to day basis and that he would move appropriate application before the learned Trial Court so that whenever the petitioner is in any difficulty and is unavailable to attend the proceedings, at least she is accommodated to that

extent. He is at liberty to do so.

6. Before parting, it is clarified that all the rights and contentions of the parties are reserved and this Court has not expressed any opinion with respect to the merits of the case or, for that matter, with respect to the request made by the learned counsel for the petitioner regarding not taking up the matter on day to day basis.

MANOJ JAIN, J AUGUST 5, 2024/ss This is a digitally signed order.

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